

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Julian Phillips	Team: Squad #09	CCRB Case #: 201707093	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 08/26/2017 7:42 PM	Location of Incident: the Staten Island Ferry terminal	18 Mo. SOL 2/26/2019	Precinct: 01
Date/Time CV Reported Tue, 08/29/2017 12:25 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 08/29/2017 12:25 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Frank Gut	05662	949070	001 PCT
2. POM Tyrone Cassara	29707	950172	001 PCT
3. POM Jonathan Metelus	14396	950883	001 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF April Shaughnessy	21550	959980	001 PCT
2. POM Matthew Horan	15001	956741	001 PCT
3. POF Sarah Velazquez	10200	949764	001 PCT
4. POM Michael Adelson	18821	958216	001 PCT
5. SGT Vilaine Drantyevelyacinthe	67	926453	I.A.B.
6. DT3 Christophe Mclaughlin	1836	949308	001 DET
7. POF Nicole Monaco	12437	953127	001 DET
8. POM Kevin Cormican	19632	958437	001 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Frank Gut	Force: Police Officer Frank Gut used physical force against § 87(2)(b)	A . Exonerated
B . POM Tyrone Cassara	Discourtesy: Police Officer Tyrone Cassara spoke discourteously to § 87(2)(b)	B . Unsubstantiated
C . POM Tyrone Cassara	Force: Police Officer Tyrone Cassara used physical force against § 87(2)(b)	C . Exonerated
D . POM Frank Gut	Force: Police Officer Frank Gut used physical force against § 87(2)(b)	D . Exonerated

Officer(s)	Allegation	Investigator Recommendation
E . POM Jonathan Metelus	Force: Police Officer Jonathan Metelus used a Taser against § 87(2)(b)	E . Exonerated
F . POM Jonathan Metelus	Abuse: Police Officer Jonathan Metelus threatened § 87(2)(b) with the use of force.	F . Unfounded

Case Summary

On August 26, 2017 at approximately 7:42 p.m., inside the Staten Island Ferry Terminal in Manhattan, while attempting to place § 87(2)(b) under arrest, PO Frank Gut, of the 1st Precinct, took § 87(2)(b) to the ground (**Allegation A: Force, exonerated**). § 87(2)(b) approached the scene, and PO Tyrone Cassara, also of the 1st Precinct, allegedly said to him, “move the fuck back” (**Allegation B: Discourtesy, unsubstantiated**). PO Cassara seized § 87(2)(b) and began wrestling with him (**Allegation C: Force, exonerated**). PO Gut approached § 87(2)(b) and PO Cassara and punched § 87(2)(b) in the head (**Allegation D: Force, exonerated**). PO Jonathan Metelus, also of the 1st Precinct, deployed a conducted electrical weapon, striking § 87(2)(b)'s abdomen (**Allegation E: Force, exonerated**). PO Metelus allegedly said to § 87(2)(b) “I’ll shoot you again” (**Allegation F: Abuse of Authority, unfounded**). § 87(2)(b) was arrested and charged with § 87(2)(b); § 87(2)(b) was arrested and charged with § 87(2)(b). There was both surveillance and mobile-phone footage of this incident (01 Board Review, 02 Board Review).

Findings and Recommendations

Allegation A: Force – Police Officer Frank Gut used physical force against § 87(2)(b)

In his sworn statement to the CCRB, § 87(2)(b) stated that, after § 87(2)(b) participated in an assault on an unidentified male individual outside the Staten Island Ferry, multiple officers approached § 87(2)(b) and ordered him to put his hands behind his back. § 87(2)(b) did not comply with this command, and began to move away from the officers. Officers (who § 87(2)(b) could not describe) forced § 87(2)(b) onto the floor (03 Board Review).

§ 87(2)(b) declined to provide a statement to the CCRB because he had pending criminal charges stemming from this incident.

PO Gut stated that he and at least two other officers approached § 87(2)(b) inside the terminal after being informed that video footage had shown § 87(2)(b) to have participated in an assault earlier that evening. PO Gut stated that the officers informed § 87(2)(b) that he was being placed under arrest and ordered him to put his hands behind his back. § 87(2)(b) began to scream and to wiggle his arms and shoulders, but did not put his hands behind his back. Multiple officers, including PO Gut, seized hold of § 87(2)(b) and forced him onto the floor in order to place him under arrest (04 Board Review). § 87(2)(g) the Threat, Resistance, or Injury report that he prepared for the incident, which reported that PO Gut used a Forcible Take Down and handcuffing in apprehending § 87(2)(b) (05 Board Review).

Surveillance video footage filmed inside the terminal shows multiple officers, including PO Gut, approaching § 87(2)(b) and speaking briefly to him. PO Gut and PO Sarah Velazquez, also of the 1st Precinct, grasp hold of § 87(2)(b)'s arms, and § 87(2)(b) pulls out of their grip and

begins to move away. Multiple officers attempt to grab hold of § 87(2)(b) PO Gut places his right forearm arm across § 87(2)(b)'s chest and pulls § 87(2)(b) backwards and downwards, causing both to fall to the floor.



§ 87(2) surveillance.mp4

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) Procedure 221-01 of the NYPD Patrol Guide states that officers may use force that is “reasonable under the circumstances” in order to “place a person in custody or to prevent escape from custody.” (12 Board Review). § 87(2)(g)
§ 87(2)(g) It is therefore recommended that **Allegation A** be closed as **exonerated**.

Allegation B: Discourtesy – Police Officer Tyrone Cassara spoke discourteously to § 87(2)(b)

§ 87(2)(b)
In his sworn statement to the CCRB, § 87(2)(b) stated that, as officers were attempting to handcuff § 87(2)(b) he approached PO Cassara, who was standing a few inches in front of the officers and § 87(2)(b) Standing less than two feet away from PO Cassara, § 87(2)(b) repeatedly asked what was going on. PO Cassara repeatedly ordered him to move back, including by saying a single time, “move the fuck back.”

In a telephone statement provided to the CCRB, § 87(2)(b) (a friend of § 87(2)(b) who was filming the arrests of § 87(2)(b) and § 87(2)(b) stated that he did not hear any officer use profanity during the incident (06 Board Review).

PO Cassara stated that, when § 87(2)(b) approached the officers who were attempting to apprehend § 87(2)(b) he ordered him approximately ten times to back away from the scene. PO Cassara did not recall if he ever phrased this command as “back the fuck up” (07 Board Review).

PO Gut stated that, when PO § 87(2)(b) approached him and other officers who were attempting to apprehend § 87(2)(b) PO Cassara repeatedly ordered § 87(2)(b) to move back. PO Gut did not recall PO Cassara saying “move the fuck back,” PO Jonathan Metelus (08 Board Review) and PO April Shaughnessy (09 Board Review), who were also present at the scene, did not recall PO Cassara ordering § 87(2)(b) to back away from the scene, nor did they recall him using any profanity.

Mobile phone video footage filmed by § 87(2)(b) shows PO Cassara circling the officers attempting to handcuff § 87(2)(b) apparently maintaining a perimeter around the scene of the apprehension. The footage shows PO Cassara speaking to § 87(2)(b) at three different points. PO Cassara is gesturing, apparently indicating to § 87(2)(b) that he should move back, but his words are largely inaudible due to other noise. The audio does capture PO Cassara saying “get back” at one point, but does not capture him saying “move the fuck back” or using any other profanity.



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§ 87(2)(g)

It is therefore recommended that **Allegation B** be closed as **unsubstantiated**.

Allegation C: Force – Police Officer Tyrone Cassara used physical force against § 87(2)(b)

In his sworn statement to the CCRB, § 87(2)(b) stated that, after PO Cassara had repeatedly ordered him to back away from the scene, PO Cassara placed his hand on § 87(2)(b)'s chest and applied pressure, apparently in an attempt to push him away from the scene. § 87(2)(b) denied being intoxicated, although he acknowledged consuming two cans of beer and a shot of liquor. § 87(2)(b) did not move back, and reached towards PO Cassara with his phone in his hand in order to film. PO Cassara then seized § 87(2)(b) and pulled him, triggering § 87(2)(b) to seize hold of PO Cassara's neck and attempt to push PO Cassara away. In seizing § 87(2)(b) PO Cassara caused him to drop the mobile phone that he was holding in his hand, preventing him from filming the scene and causing the phone to fall and sustain damage. The two grappled for approximately ten seconds before PO Cassara pulled § 87(2)(b) against a door leading outside the terminal.

PO Cassara stated that, after he had repeatedly ordered § 87(2)(b) to back away from the scene, he determined § 87(2)(b) to be under arrest for § 87(2)(b). PO Cassara then seized hold of one of § 87(2)(b)'s arms with the intention of pulling it behind his back to apply handcuffs. § 87(2)(b) pulled his arm away, then seized hold of PO Cassara's collar and began to push and pull him. The two grappled and moved towards a door leading outside the terminal. § 87(2)(g) the Threat, Resistance, or Injury report that he prepared for the incident, which reported that § 87(2)(b) used “Wrestling/Grappling” and “Pushing/Shoving” and that PO Cassara used force consistent with a Forcible Take Down (10 Board Review).

Mobile phone video footage filmed by § 87(2)(b) (embedded within the analysis of Allegation B) shows § 87(2)(b) thrusting his right arm, holding a mobile phone, in the direction of PO Cassara and the officers attempting to handcuff § 87(2)(b). PO Cassara immediately seizes hold of § 87(2)(b)'s right arm and presses it downwards, causing § 87(2)(b)'s mobile phone to fall. § 87(2)(b) jerks his arm out of PO Cassara's grip. PO Cassara seizes hold of § 87(2)(b)'s shirt, and § 87(2)(b) seizes hold of PO Cassara's shoulder area. The two collide with the officers attempting to handcuff § 87(2)(b). PO Cassara pushes § 87(2)(b) several feet, away from the officers attempting to handcuff § 87(2)(b) and in the direction of a door leading outside the terminal.

§ 87(2)(g)
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§ 87(2)(g). Procedure 221-01 of the NYPD Patrol Guide states that officers may use force that is "reasonable under the circumstances" in order to "place a person in custody or to prevent escape from custody." § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) It is therefore recommended that
Allegation C be closed as **exonerated**.

Allegation D: Force – Police Officer Frank Gut used physical force against § 87(2)(b)
§ 87(2)(b) stated that, after he had been grappling with PO Cassara for approximately ten seconds, an officer (identified by the investigation as PO Gut) approached him and seized hold of his shoulder. PO Cassara and PO Gut both then applied pressure on § 87(2)(b)'s body, apparently in an attempt to force him onto the floor. § 87(2)(b) stiffened his body in order to prevent the officers from forcing him onto the floor. After remaining in this position for approximately ten seconds, PO Gut punched § 87(2)(b) in his right ear, causing a contusion and other minor injuries.

PO Gut stated that, upon observing § 87(2)(b) grappling with PO Cassara, he determined that § 87(2)(b) was under arrest for § 87(2)(b). PO Gut immediately approached § 87(2)(b) and punched him in the right side of the face in order to stop him from grappling and enable the officers to effect his arrest. PO Gut chose to punch § 87(2)(b) in the face (rather than elsewhere) because § 87(2)(b) and PO Cassara were moving quickly, and by punching § 87(2)(b)'s face he did not risk striking PO Cassara. § 87(2)(g)
§ 87(2)(b) the Threat, Resistance, or Injury report that he prepared for the incident, which reported that PO Gut used a hand strike against § 87(2)(b) in "Defense of Other MOS" and in order to "Overcome Resistance or Aggression" (11 Board Review).

Mobile phone video footage filmed by § 87(2)(b) (embedded in the analysis of Allegation B), as well as surveillance video footage filmed inside the terminal (embedded in the analysis of Allegation A), shows § 87(2)(b) grappling with PO Cassara in front of a door leading outside the terminal. PO Gut quickly moves towards § 87(2)(b) and PO Cassara, immediately punches § 87(2)(b) in the head area, then immediately reaches his arms around § 87(2)(b)'s shoulder area in an apparent attempt to restrain him.

Procedure 221-01 of the NYPD Patrol Guide states that officers may use force that is “reasonable under the circumstances” in order to “place a person in custody or to prevent escape from custody.” The Procedure further states that, in determining whether a use of force is “reasonable,” considerations should include “whether the subject is actively resisting custody” and the previous “actions taken by the subject.”

It is undisputed that § 87(2)(b) was actively resisting PO Cassara’s attempts to place him into custody, and it is further undisputed that PO Cassara’s attempts to overcome § 87(2)(b)'s resistance through pushing and grappling were unsuccessful. § 87(2)(g)

§ 87(2)(g). It is therefore recommended that **Allegation D** be closed as **exonerated**.

Allegation E: Force – Police Officer Jonathan Metelus used a Taser against § 87(2)(b)

In his sworn statement to the CCRB, § 87(2)(b) stated that, after he was punched by PO Gut, an officer (identified by the investigation as PO Metelus) stood between three and four feet in front of him, pointed a Conducted Electrical Weapon at his torso, and fired two darts, which struck him in the abdomen. The Conducted Electrical Weapon emitted a rapid-paced series of sounds, although § 87(2)(b) did not feel a shock.

PO Metelus stated that, as he was attempting to handcuff § 87(2)(b) he observed § 87(2)(b) seize hold of PO Cassara’s collar area and begin to grapple with him. PO Metelus also heard PO Cassara order § 87(2)(b) to place his hands behind his back and observed that § 87(2)(b) did not comply with this command. PO Metelus did not believe § 87(2)(b) to be intoxicated at this time, and he did not observe § 87(2)(b) being punched. PO Metelus drew his Conducted Electrical Weapon and approached § 87(2)(b) in order to assist PO Cassara in placing him under arrest. PO Metelus stood approximately four feet in front of § 87(2)(b) issued a verbal warning to PO Cassara (but not to § 87(2)(b) and fired the Conducted Electrical Weapon, striking § 87(2)(b) in the abdomen with both darts. § 87(2)(g) the Threat, Resistance, or Injury report that he prepared for the incident, which reported that PO Metelus deployed a Conducted Electrical Weapon against § 87(2)(b) in “Defense of Other MOS” (13 Board Review).

PO Gut stated that, after he punched § 87(2)(b) § 87(2)(b) ceased active resistance for approximately one second before resuming grappling with PO Cassara. PO Metelus approached § 87(2)(b) and issued a verbal warning, but § 87(2)(b) did not change his behavior. PO Gut and PO Cassara stepped away from § 87(2)(b) and PO Metelus deployed his Conducted Electrical Weapon, striking § 87(2)(b).

PO Cassara stated that, after PO Gut punched § 87(2)(b) continued to grapple with him by pulling on his shirt collar. PO Metelus then approached § 87(2)(b) issued a verbal warning to PO Cassara, and fired his Conducted Electrical Weapon, striking § 87(2)(b).

Mobile phone video footage filmed by § 87(2)(b) (embedded in the analysis of Allegation B) shows that, immediately after PO Gut punched § 87(2)(b) § 87(2)(b) seized hold of PO Cassara's collar, then began to move his feet and body forwards and backwards in an apparent attempt to free himself from the grips of PO Cassara and PO Gut. The bodies and arms of all three men are visibly tensed. PO Gut is heard saying "Tase him." In a single instant, a Conducted Electrical Weapon enters the frame of the camera, PO Cassara and PO Gut back away from § 87(2)(b) and two wires are visible striking § 87(2)(b)'s abdomen.

Procedure 221-08 of the NYPD Patrol Guide states that an officer may deploy a Conducted Electrical Weapon "against persons who are actively resisting," defined as "physically evasive movements to defeat a member of the service's attempt at control, including, bracing, tensing, [or] pushing" (14 Board Review).

It is undisputed that § 87(2)(b) continued to actively resist the attempts of PO Cassara and PO Gut to place him into custody after PO Gut attempted to subdue him with a hand strike to the head. § 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegation E** be closed as **exonerated**.

Allegation F: Abuse of Authority – Police Officer Jonathan Metelus threatened § 87(2)(b) with the use of force.

In his sworn statement to the CCRB, § 87(2)(b) stated that, after PO Metelus deployed the Conducted Electrical Weapon, he stood upright and raised his hands above his head to signal that he had ceased resisting. PO Metelus stood in front of him and, while reloading the cartridge of the Conducted Electrical Weapon, said "I'll shoot you again."

PO Metelus stated that § 87(2)(b) ceased resisting following deployment of the Conducted Electrical Weapon. PO Metelus stated that, at this time, he informed § 87(2)(b) that he was under arrest, but did not threaten to deploy the Conducted Electrical Weapon a second time.

PO Cassara stated that, after PO Metelus deployed the Conducted Electrical Weapon, § 87(2)(b) stated that use of the device had been unnecessary, and PO Metelus responded that he had used the device because § 87(2)(b) had seized hold of PO Cassara's neck. PO Cassara observed PO Metelus reload the cartridge of the Conducted Electrical Weapon, but did not hear him threaten to deploy it a second time. PO Gut and PO Shaughnessy, also present, stated that they did not hear any conversation between § 87(2)(b) and PO Metelus following the deployment of the Conducted Electrical Weapon.

Mobile phone video footage filmed by § 87(2)(b) (embedded in the analysis of Allegation B) captures a brief conversation between § 87(2)(b) and PO Metelus while § 87(2)(b) is being handcuffed, immediately following the deployment of the Conducted Electrical Weapon. PO Metelus is audibly ordering § 87(2)(b) to get on the ground. A few seconds later, § 87(2)(b) says to PO Metelus, "you just Tased me," to which PO Metelus replies, "yes." A few seconds later, § 87(2)(b) says, "are you going to do it again?" PO Metelus audibly replies, "no."

Video footage of the period in which § 87(2)(b) alleged that PO Metelus threatened to deploy his Conducted Electrical Weapon a second time does not record this threat—and, further, indicates that PO Metelus explicitly told § 87(2)(b) that he would not use the device against him an additional time. It is therefore recommended that **Allegation F** be closed as **unfounded**.

Civilian and Officer CCRB Histories

- PO Cassara has been a member of the NYPD for six years and has one prior CCRB allegation (15 Board Review). In case 201402219, PO Cassara was alleged to have used minor physical force to detain an individual who was attempting to flee an arrest. This allegation was closed as complaint uncooperative.
- PO Gut has been a member of the NYPD for seven years and has no prior CCRB allegations (16 Board Review).
- PO Metelus has been a member of the NYPD for six years and has one prior CCRB allegation (17 Board Review). This allegation was closed as complainant uncooperative. § 87(2)(g)
- This is the first CCRB complaint in which § 87(2)(b) was involved (18 Board Review).
- § 87(2)(b), § 87(2)(g)

Mediation, Civil and Criminal Histories

- This case was deemed ineligible for mediation due to the arrests of § 87(2)(b) and § 87(2)(b).
- § 87(2)(b) has filed a claim with the New York City Comptroller for payment of unspecified medical expenses stemming from injuries that he received during this incident (20 Board Review).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
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Squad No.: _____

Investigator:	_____	_____	_____
	Signature	Print Title & Name	Date

Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date